



DEPARTMENT OF PUBLIC SAFETY

Division of Fire Prevention and Control

PERSONS DEALING WITH FIREWORKS

8 CCR 1507-12

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

CHAPTER I SCOPE AND DEFINITIONS

1.0 PURPOSE

This regulation is promulgated to establish minimum requirements and standards for licenses to sell, store, or use fireworks in the interest of the life, health and safety of employees and the general public, as well as the protection of property.

1.1 AUTHORITY

The Executive Director of the Department of Public Safety is authorized to promulgate rules and regulations for the licensing of persons dealing with fireworks pursuant to C.R.S. § 24-33.5-2004(7). Within the Department of Public Safety, the Director of the Division of Fire Prevention and Control shall administer these rules and regulations.

1.2 SCOPE

These rules and regulations shall apply to the possession, sale, storage, and use of fireworks in the State of Colorado by any person.

For a thorough understanding of all requirements concerning the possession, sale, storage, and use of fireworks in Colorado, these rules must be used in conjunction with Part 20, Article 33.5 of Title 24, Colorado Revised Statutes.

These rules do not supersede, and are to be used in conjunction with, any other state and federal laws and regulations concerning the manufacture, sale, storage, transportation and use of fireworks.

These rules and regulations shall not apply to:

- (a) The use of fireworks by railroads or other transportation agencies for signal purposes or illumination;
- (b) The sale or use of blank cartridges for a show or theater, for signal or ceremonial purposes in athletics or sports, or for use by military organizations;
- (c) Fireworks which are used in testing or research by a licensed explosives laboratory;
- (d) The sale, purchase, possession, or use of fireworks distributed by the Division of Wildlife for agricultural purposes under conditions approved by said Division;
- (e) Toy caps which do not contain more than sixteen (16) milligrams of pyrotechnic composition per cap;

- (f) Highway flares, railroad fusees, ship distress signals, smoke candles, and other emergency signal devices;
- (g) Educational rockets and toy propellant device type engines used in such rockets when such rockets are of nonmetallic construction and utilize replaceable engines or model cartridges containing less than two (2) ounces of propellant and when such engines or model cartridges are designed to be ignited by electrical means;
- (h) The transportation of fireworks when such transportation is under the jurisdiction of the U.S. Department of Transportation; or
- (i) The manufacture, transportation, and storage of fireworks by federal and state military agencies.

1.3 DEFINITIONS

The definitions contained in C.R.S. § 24-33.5-2001 shall apply to these rules and regulations. In addition, the following words, when used in these rules and regulations, shall mean:

APPROVAL, APPROVED or AUTHORIZED: Acceptable to the Director of the Division or the “authority having jurisdiction.”

AUTHORITY HAVING JURISDICTION: The organization, office or individual responsible for “approving” equipment, an installation or a procedure.

CERTIFIED FIREWORKS DISPLAY OPERATOR: A person certified by the Division to conduct professional outdoor fireworks displays.

CERTIFIED PYROTECHNIC OPERATOR: A person certified by the Division to conduct pyrotechnic special effect performances before a proximate audience.

C.F.R.: Code of Federal Regulations.

C.R.S.: Colorado Revised Statutes.

DEPARTMENT: The Colorado Department of Public Safety.

DIRECTOR: The Director of the Division of Fire Prevention and Control located within the Colorado Department of Public Safety.

DISCHARGE SITE: The area immediately surrounding the display fireworks mortars used for an outdoor fireworks display.

DISPLAY FIREWORKS: Large fireworks designed primarily to produce visible or audible effects by combustion, deflagration, or detonation. This term includes, but is not limited to, salutes containing more than one hundred thirty (130) milligrams of explosive material, aerial shells containing more than forty (40) grams of pyrotechnic composition and other display pieces that exceed the limits of explosive materials for U.S.D.O.T. classification as “consumer fireworks.” Display fireworks are classified as Class B explosives by the U.S.D.O.T.

DIVISION: The Division of Fire Prevention and Control in the Colorado Department of Public Safety.

EXECUTIVE DIRECTOR: The Executive Director of the Colorado Department of Public Safety.

EXPLOSIVE: Any chemical compound, mixture, or device, the primary or common purpose of which is to function by explosion. The term includes, but is not limited to, dynamite, black powder, pellet powder, igniting explosives, detonators, squibs, detonating cord, igniter cord, and igniters.

FALLOUT AREA: The area over which aerial shells are fired. The shells burst over this area, and unsafe debris and malfunctioning aerial shells fall into this area. The fallout area is the location where a typical aerial shell dud will fall to the ground considering wind and the angle of mortar placement.

FIREWORKS DISPLAY: An outdoor display of aerial shells and/or ground pieces conducted by a certified fireworks display operator and performed as entertainment, or a special effect performance utilizing pyrotechnic materials and devices before a live audience.

FIREWORKS PLANT: All land and buildings thereon used for in connection with the manufacture, research or processing of fireworks, including storage buildings used with or in connection with plant operation.

GROUND DISPLAY PIECE: A pyrotechnic device that functions on the ground (as opposed to an aerial shell that functions in the air). Typical ground display pieces include fountains, roman candles and wheels.

HIGHWAY: Any public street, public alley or public road. **INSPECTOR:** An Inspector of the Division.

LOCAL AUTHORITY: The duly authorized fire department, police department, or sheriff's department of a local jurisdiction.

MAGAZINE: Any building or structure, or container, other than a fireworks plant, approved and used exclusively for the storage of explosive materials.

MONITOR: A person designated by the sponsors of a fireworks display to keep the audience in the intended viewing area and out of the discharge site and fallout area.

MORTAR: A tube from which aerial shells are fired into the air.

MOTOR VEHICLE: Any self-propelled vehicle, truck, tractor, semi-trailer, or truck-trailer combination used for the transportation of freight over public highways.

NFPA: National Fire Protection Association.

PERMISSIBLE FIREWORKS: Those small firework devices designed primarily to produce visible effects by combustion and that are listed in, and that comply with, the construction, chemical composition, and labeling requirements of C.R.S. § 24-33.5-2001. Some small devices designed to produce audible effects are included, such as whistling devices. Permissible fireworks burn without explosion and do not produce a loud report, and no device or component shall, upon functioning, project or disburse any metal, glass, or brittle plastic fragments.

PYROTECHNIC COMPOSITION: A chemical mixture, which upon burning and without explosion, produces visible, brilliant displays, bright lights, or sounds.

PYROTECHNIC DISPLAY OPERATOR: The person with overall responsibility for safety and the setting up and discharge of a fireworks display.

PYROTECHNIC SPECIAL EFFECTS OPERATOR: The person with responsibility for pyrotechnic and special effects safety and who controls, initiates, or otherwise creates special effects. The pyrotechnic operator is also responsible for storing, setting up, and removing pyrotechnic materials after a performance.

PYROTECHNIC SPECIAL EFFECT PERFORMANCES: A special effect created through the use of pyrotechnic materials and devices performed by a Certified Pyrotechnic Operator for the entertainment of a live audience.

SHALL: Indicates a mandatory requirement.

SHOULD: Indicates a recommendation or that which is advised but not required.

STORAGE BUILDING: Any building, structure, or facility in which Common Fireworks (Class C Explosives) in any state of processing ***[are stored?], providing there is no exposed pyrotechnic material, but in which no processing, manufacturing or sale is actually performed.

U.S.D.O.T.: United States Department of Transportation.

CHAPTER II GENERAL PROVISIONS

2.1 GENERAL PROVISIONS

Except as provided in C.R.S. §§ 24-33.5-2001 through 24-33.5-2011 and these rules and regulations, no person shall possess or discharge any fireworks, other than permissible fireworks, anywhere in Colorado.

Except as provided in C.R.S. §§ 24-33.5-2001 through 24-33.5-2011 and these rules and regulations, no person shall offer for sale, expose for sale, sell, deliver, consign, or have in their possession with the intent to offer for sale, any fireworks including permissible fireworks, unless said person is licensed to conduct such activity by the Division and has obtained a permit, if any, required by the local authority.

2.2 SALE OF FIREWORKS TO JUVENILES

Except as provided in paragraph 2.3, no person shall furnish, by gift, sale or other means, any fireworks, including permissible fireworks, to any person who is under sixteen (16) years of age.

2.3 PURCHASE, POSSESSION OR DISCHARGE OF FIREWORKS BY JUVENILES

No person under sixteen (16) years of age may purchase any fireworks, including permissible fireworks.

No person under sixteen (16) years of age may possess or discharge any permissible fireworks unless such person is under adult supervision during these acts. Adult supervision shall mean that a responsible adult is in the immediate vicinity of the juvenile in order to oversee the activities of the juvenile and to remedy any unsafe acts.

2.4 CODES AND STANDARDS

The following codes and the standards referenced therein are adopted and promulgated as minimum standards for persons dealing with fireworks in accordance with C.R.S. § 24-4-103 (12.5):

2.4.1 Adopted codes pertinent to this rule shall be as prescribed in 8 CCR 1507-1 (BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO).

2.4.1.1 For the purposes of this rule, the Division shall enforce the Building Codes as defined in 8 CCR 1507-1 § 3.2.1.

2.4.1.2 For the purposes of this rule, the Division shall enforce the Fire Codes as defined in 8 CCR 1507-1 § 3.2.2.

- 2.4.1.3 For the purposes of this rule, the Division shall enforce the Codes and Standards for persons dealing with fireworks as defined in 8 CCR 1507-1 § 3.2.5.

2.5 REGULATION BY MUNICIPALITIES AND COUNTIES

These rules shall not be construed to prohibit the imposition by municipal or county ordinance of further regulations and prohibitions upon the sale, use, and possession of fireworks, including permissible fireworks, within the corporate limits of any city, town, or all or any part of the unincorporated areas of a county, but no such city, town, or county shall permit or authorize the sale, use, or possession of any fireworks in violation of C.R.S. § 24-33.5-2001 through § 24-33.5-2011 and these rules.

CHAPTER III PERMISSIBLE FIREWORKS

3.1 GENERAL

Unless otherwise restricted by the ordinances or resolutions of any municipality or other governing body authorized by law to restrict the sale, possession or use of fireworks, the following fireworks may be sold to, possessed by, and/or used by the general public, when such sale, possession and/or use is in accordance with C.R.S. § 24-33.5-2001 through § 24-33.5-2011 and these rules and regulations:

- (a) Cylindrical fountains, total pyrotechnic composition not to exceed seventy-five (75) grams each for a single tube or, when more than one tube is mounted on a common base, the total pyrotechnic composition of which is no more than two hundred (200) grams;
- (b) Cone fountains, total pyrotechnic composition not to exceed fifty (50) grams each for a single cone or, when more than one cone is mounted on a common base, the total pyrotechnic composition of which is no more than two hundred (200) grams;
- (c) Wheels, the total pyrotechnic composition of which do not exceed sixty (60) grams for each driver unit or two hundred grams (200) for each complete wheel;
- (d) Ground spinner, which are small devices containing not more than twenty (20) grams of pyrotechnic composition venting out of an orifice usually in the side of the tube. Ground spinners operate similar to a wheel, but are intended to be placed flat on the ground;
- (e) Illuminating torches and colored fire in any form, the total pyrotechnic composition of which does not exceed two hundred (200) grams each in weight;
- (f) Dipped sticks and sparklers, the total pyrotechnic composition of which does not exceed one hundred (100) grams and of which the composition of any chlorate or perchlorate shall not exceed five (5) grams;
- (g) Any of the following that do not contain more than fifty (50) milligrams of explosive composition:
 - (1) Explosive auto alarms;
 - (2) Toy propellant devices;
 - (3) Cigarette loads;
 - (4) Strike-on box matches; or
 - (5) Other trick noise makers;

- (h) Snake or glow worm, pressed pellets of not more than two (2) grams of pyrotechnic composition and packaged in retail packages of not more than twenty-five (25) units;
- (i) Fireworks that are used exclusively for testing or research by a licensed explosives laboratory; and
- (j) Multiple tube devices with:
 - (1) Each tube individually attached to a wood or plastic base;
 - (2) The tubes separated from each other on the base by a distance of at least one-half of one inch;
 - (3) The effect limited to a shower of sparks to a height of no more than fifteen (15) feet above the ground;
 - (4) Only one external fuse that causes all of the tubes to function in sequence; and
 - (5) A total pyrotechnic composition of no more than five hundred (500) grams.

3.2 LICENSE REQUIRED

No person shall sell, offer for sale, expose for sale, or possess with intent to sell permissible fireworks for retail, unless said person is licensed as a fireworks retailer.

CHAPTER IV FIREWORKS LICENSING

4.1 GENERAL PROVISIONS

No person shall purchase, possess, keep, sell or offer for sale, give away, use, or dispose of in any manner any fireworks, except permissible fireworks, unless said person holds a valid license from the Department of Public Safety.

No person shall sell, offer for sale, expose for sale, or possess with intent to sell permissible fireworks for retail, unless said person is licensed as a fireworks retailer.

Application for a fireworks license shall be made to the Division in a format prescribed by the Director and shall contain such information as the Director may require.

Application for a fireworks license shall be filed with the Division at least thirty (30) days before the start of activities for which the license is required.

Payment of the fee must accompany the application for a license to the Division.

Licenses issued under these rules and regulations shall be dated and numbered. Each license will indicate the class of license and will be valid through September 1 of the year following the date on which the license was issued. Exception: a retailer of fireworks license shall be valid only for the calendar year in which it is issued.

Where application for a fireworks license is made in the name of a corporation or company, the application shall also include the name of the person who will be responsible for compliance with the provisions of Part 20, Article 33.5 of Title 24, C.R.S., and any rules promulgated thereunder.

Where application for a fireworks license is made in the name of a corporation or company, a copy of the Certificate of Good Standing from the Secretary of State must be filed with the application.

Where business is to be conducted under a fictitious name, a copy of the trade name affidavit as filed with the Colorado Department of Revenue must be filed with the application.

All applicants for a fireworks license will be subject to a background investigation, including, but not limited to, criminal history, reference checks and review of fireworks records. The application may be denied at the discretion of the Director if the applicant has one or more criminal convictions.

In the event that an application for a fireworks license is incomplete, the applicant shall have 180 days in which to submit additional required documentation, after which the initial application shall be void.

Processing fees in accordance with 14.1 shall be forfeited.

4.2 CLASSES OF FIREWORKS LICENSES

Following are the classes of fireworks licenses required by C.R.S. § 24-33.5-2004 and these rules, and the general activities permitted by such license:

- (a) RETAILER OF FIREWORKS LICENSE: To sell, offer for sale, expose for sale, or possess with intent to sell permissible fireworks at retail.
- (b) DISPLAY RETAILER OF FIREWORKS LICENSE: To sell deliver, consign, give or furnish fireworks to any person authorized to conduct a fireworks display in Colorado.
- (c) WHOLESALE OF FIREWORKS LICENSE: To sell, deliver, consign, give or furnish permissible fireworks to a retailer for resale in Colorado.
- (d) EXPORTER OF FIREWORKS LICENSE: To sell, deliver, consign, give or furnish fireworks for export outside of Colorado.

4.3 LICENSE RESTRICTIONS

No license holder shall sell, deliver, consign, give, or furnish fireworks except in compliance with C.R.S. § 24-33.5-2001 through § 24-33.5-2011 and these rules.

No person shall have any fireworks, except permissible fireworks, in their possession or control without a license required by C.R.S. § 24-33.5-2004 and these rules.

4.4 PROTECTION AND EXHIBITION OF LICENSES

License holders shall take every reasonable precaution to protect their licenses from loss, theft, defacement, destruction or unauthorized duplication.

The loss or theft of any license shall be reported immediately to the Division. Licenses shall be prominently displayed at the location where fireworks are sold.

4.5 REPORTS OF ACCIDENTS, FIRES AND INJURIES

Any accident, fire or injury that occurs in connection with the manufacture, sale, transportation, storage, or use of fireworks, and known to the license holder, shall be reported immediately by the license holder to the Division and to local fire and law enforcement authorities whenever there is loss of life, injury to any person, or damage to property.

4.6 RECORDS OF TRANSACTIONS - GENERAL REQUIREMENTS

Unless otherwise required by C.R.S. § 24-33.5-2001 through § 24-33.5-2011 and these rules, all license holders shall keep a complete record of all transactions involving fireworks for two (2) years following the year in which the transactions occurred. An accumulation of invoices, sales slips, delivery tickets, bills of lading, or receipts or similar papers representing individual transactions will satisfy the general requirements of complete records. The specific record-keeping requirement for each class of license is found herein under the heading for the class of license.

Such records must be retained by the license holder and furnished to the Division during normal business hours upon request.

4.7 LICENSE CHANGES

The Division shall be notified within twenty-four (24) hours when:

- (a) The permanent address of a person who possesses a fireworks license is changed;
- (b) The ownership of any business possessing fireworks licenses is changed;
- (c) The person who is responsible for compliance with the provisions of Part 20, Article 33.5 of Title 24, C.R.S. is changed; or
- (d) The location of a retail sales outlet is changed and the address of the new location.

Failure of the license holder to provide such information shall result in the license being void.

4.8 DENIAL, SUSPENSION OR REVOCATION OF A LICENSE

A license for the sale or use of fireworks may be denied, suspended, or revoked by the Executive Director because of:

- (a) Violations of any of the provisions of Part 20, Article 33.5 of Title 24, C.R.S., and any rules promulgated thereunder;
- (b) A conviction of any felony, but subject to the provisions of C.R.S. § 24-5-101;
- (c) A conviction pursuant to C.R.S. § 24-33.5-2010; or
- (d) Any material misstatement, misrepresentation, or fraud in obtaining a fireworks license.

4.9 PROCEDURE ON DENIAL, SUSPENSION OR REVOCATION

- 4.9.1 If the Executive Director finds that grounds exist for the denial, revocation, or suspension of license of any applicant, action shall be taken according to the provisions of the Colorado Administrative Procedure Act, Section 24-4-101, et seq., C.R.S.
- 4.9.2 Upon the denial, revocation, or suspension of any of any license, the former license holder shall immediately surrender to the Executive Director of the Department of Public Safety the license and all copies thereof.

CHAPTER V RETAILER OF FIREWORKS LICENSE

5.1 GENERAL

No person shall sell, offer for sale, expose for sale, or possess with intent to sell permissible fireworks for retail until that person first obtains a retailer of fireworks license from the Division and the permit, if any, required by the authority having jurisdiction.

No person shall sell, offer for sale, expose for sale, or possess with intent to sell permissible fireworks that have not been purchased by a wholesaler licensed by the State of Colorado.

A retailer of fireworks license will permit only such sales as provided by Part 20, Article 33.5 of Title 24, C.R.S.

5.2 ACTIVITIES PERMITTED

The only activity permitted under this license is the sale, or possession with intent to sell, permissible fireworks for retail to the public.

Prior to the start of permitted activities, the license holder must obtain a permit, if any required, from the authority having jurisdiction.

5.3 LICENSE PROVISIONS

Application for a retailer of fireworks license shall be made to the Division at least thirty (30) days prior to the start of permitted activities.

A retailer of fireworks license shall be good only for the calendar year in which it is issued and shall apply to only one retail location.

The license shall be prominently displayed at the place of business of the licensed retailer.

5.4 VERIFICATION REQUIRED FOR SALES

For all sales, the retailer must verify that the purchaser is over sixteen (16) years of age by way of inspecting the purchaser's driver's license or other state or federally-issued identification card.

5.5 RECORD OF TRANSACTIONS

A retailer of fireworks shall keep available for inspection a copy of each invoice for fireworks purchased. Such invoice shall show the license number of the wholesaler from whom such fireworks were purchased. Said records shall be maintained for as long as any fireworks included on the invoice are held in such person's possession.

CHAPTER VI DISPLAY RETAILER OF FIREWORKS LICENSE

6.1 GENERAL

No person shall sell, deliver, consign, give, or furnish fireworks to any person authorized by C.R.S. § 24-33.5-2003 and these rules and regulations to conduct a fireworks display in Colorado until that person first obtains a display retailer of fireworks license from the Division and the permit, if any, required by the authority having jurisdiction.

A display retailer of fireworks license will permit only such sales as provided by Part 20, Article 33.5 of Title 24, C.R.S.

6.2 ACTIVITIES PERMITTED

The only activity permitted under this license is the sale of display fireworks and fireworks displays to sponsors of fireworks displays or certified fireworks display operators who are holders of permits for fireworks displays.

Prior to the start of permitted activities, the license holder must obtain a permit, if any required, from the authority having jurisdiction.

6.3 LICENSE PROVISIONS

Application for a display retailer of fireworks license shall be made to the Division at least thirty (30) days prior to the start of permitted activities.

A display retailer of fireworks license shall be valid through September 1 of the year following the date on which the license was issued.

The license shall be prominently displayed at the place of business of the licensed display retailer.

6.4 VERIFICATION REQUIRED FOR SALES

For all sales, the display retailer must verify that the display will be conducted by a certified fireworks display operator and that the sponsor holds a current and valid permit for a fireworks display.

CHAPTER VII WHOLESALE OF FIREWORKS LICENSE

7.1 GENERAL

No person shall sell, deliver, consign, give, or furnish permissible fireworks to a retailer for resale in Colorado until that person first obtains a wholesaler of fireworks license from the Division and the permit, if any, required by the authority having jurisdiction.

A wholesaler of fireworks license will permit only such sales as provided by Part 20, Article 33.5 of Title 24, C.R.S.

7.2 ACTIVITIES PERMITTED

The only activity permitted under this license is the sale, delivery, consignment, gift or otherwise providing permissible fireworks to a retailer for resale in Colorado.

Prior to the start of permitted activities, the license holder must obtain a permit, if any required, from the authority having jurisdiction.

7.3 LICENSE PROVISIONS

Application for a wholesaler of fireworks license shall be made to the Division at least thirty (30) days prior to the start of permitted activities.

A wholesaler of fireworks license shall be valid through September 1 of the year following the date on which the license was issued.

The license shall be prominently displayed at the place of business of the licensed wholesaler.

7.4 VERIFICATION REQUIRED FOR SALES

For all sales, the wholesaler must verify that the purchaser is a holder of a valid retailer, display retailer, or exporter of fireworks.

CHAPTER VIII EXPORTER OF FIREWORKS LICENSE

8.1 GENERAL

No person shall sell, deliver, consign, give, or furnish fireworks for export outside of Colorado until that person first obtains an exporter of fireworks license from the Division and the permit, if any, required by the authority having jurisdiction.

An exporter of fireworks license will permit only such sales as provided by Part 20, Article 33.5 of Title 24, C.R.S.

8.2 ACTIVITIES PERMITTED

The only activity permitted under this license is the sale, delivery, consignment, gift or otherwise providing fireworks for export outside of Colorado.

Prior to the start of permitted activities, the license holder must obtain a permit, if any required, from the local authority.

8.3 LICENSE PROVISIONS

Application for an exporter of fireworks license shall be made to the Division at least thirty (30) days prior to the start of permitted activities.

An exporter of fireworks license shall be valid through September 1 of the year following the date on which the license was issued and shall apply to only one retail location.

The license shall be prominently displayed at the place of business of the licensed exporter.

8.4 VERIFICATION REQUIRED FOR SALES

For all permitted sales, the exporter must verify that the purchaser:

- (a) Holds a valid motor vehicle driver's license issued by a state other than Colorado and holds a valid motor vehicle registration issued by a state other than Colorado; or
- (b) Holds a valid Colorado motor vehicle driver's license and holds a valid wholesale, retail or resale license issued by a state or local authority located outside the State of Colorado.

8.5 RECORD OF TRANSACTIONS

An exporter of fireworks shall keep available for inspection a copy of each bill of lading for fireworks sold. Such bill of lading must, at a minimum, show:

- (a) The full legal name and address of the purchaser; and
- (b) The quantity and type of firework sold.

The sale of fireworks for transport in the purchaser's vehicle is prohibited unless:

- (a) The purchaser provides, and the exporter records, proof of a valid motor vehicle driver's license issued by a state other than Colorado and proof of ownership of a lawfully registered transport vehicle licensed in a state other than Colorado; or
- (b) The purchaser provides, and the exporter records, proof of a valid motor vehicle driver's license issued by the state of Colorado and furnishes a valid wholesale or retail license number or resale license number issued by the governing body of a state or local authority located outside of the state of Colorado.

Said records shall be retained by the license holder for three (3) years following the year in which the transactions occurred.

CHAPTER IX STORAGE OF FIREWORKS

9.1 GENERAL

All storage of fireworks shall be in accordance with the building and fire codes adopted by the governing body. If the governing body has not adopted a fire code, all storage of fireworks shall be in accordance with the Fire Code indicated in paragraph 2.4.1.2.

CHAPTER X FIREWORKS PERMITS

10.1 GENERAL

Any governing body has the power to grant non-transferable and non-assignable permits within the area under its jurisdiction for the storage of fireworks or for:

- (a) The facilities used for the retail sales of fireworks, including permissible fireworks; or
- (b) Displays of fireworks by any person, fair association, amusement park, or other organizations or groups.

10.2 PERMIT REQUIRED

Prior to the start of permitted activities, the holder of any license pursuant to C.R.S. § 24-33.5-2004 and these rules must obtain a permit, if any required, from the governing body.

Application for permits pursuant to C.R.S. § 24-33.5-2003 and these rules shall be made to the governing body at least thirty (30) days prior to the start of permitted activities, unless otherwise required by the authority having jurisdiction.

CHAPTER XI DISPLAY OF FIREWORKS

11.1 GENERAL PROVISIONS

No fireworks display shall be conducted in the State of Colorado without a valid permit if required by the local authority. No permit shall be required for fireworks displays conducted by the Colorado State Fair Authority or any other governing body.

These provisions apply to both outdoor fireworks displays and pyrotechnic special effect performances.

11.2 PERMIT PROVISIONS

All fireworks display permits shall be valid for only one date or event and location and shall expire the day following the permitted date. An alternate date shall be permitted should the display or event covered by the permit be postponed.

The application for a fireworks display permit shall be accompanied by a site plan, evidence of financial responsibility, and a check or money order in payment of any required fee.

No permit for a fireworks display shall be issued to any person unless said person is a certified fireworks display operator or a certified pyrotechnic operator, whichever classification is appropriate.

11.3 CONDUCT OF FIREWORKS DISPLAY

All fireworks displays performed in the State of Colorado must be conducted by a certified fireworks display operator or a certified pyrotechnic operator, whichever classification is appropriate.

In addition to any other requirements of the authority having jurisdiction, any outdoor fireworks display conducted in the State of Colorado must be performed in accordance with the requirements of NFPA 1123-2014; Code for the Outdoor Display of Fireworks.

Any pyrotechnic special effect performances must be performed in accordance with the requirements of the authority having jurisdiction.

Unless otherwise required by the authority having jurisdiction, the display site shall be set-up and ready for inspection a minimum of sixty (60) minutes prior to the start of the display.

Prior to conducting an authorized fireworks display, the operator shall conduct an inspection of the display site.

11.4 REPORTS OF ACCIDENTS, FIRES AND INJURIES

Any pyrotechnics-related accident, fire or injury that occurs in connection with an authorized fireworks display, and known to the operator, shall be reported immediately by the operator to the Division and to local fire and law enforcement authorities.

CHAPTER XII FIREWORKS DISPLAY OPERATOR CERTIFICATION

12.1 GENERAL PROVISIONS

No person shall be certified as a fireworks display operator unless they have passed a general knowledge fireworks examination administered by the Colorado Division of Fire Prevention & Control and have actively participated in a minimum of five (5) documented fireworks displays in the five (5) years prior to application submission.

12.2 APPLICATION FOR CERTIFICATION

Application for certification as a fireworks display operator shall be filed with the Division on forms prescribed by the Director and shall contain such information as the Director may require.

Application for certification as a fireworks display operator shall be filed with the Division at least thirty (30) days before the date of any fireworks display to be conducted by the applicant.

Payment of the fee required by these rules and regulations must accompany the application for certification to the Division.

A criminal investigative background check shall be conducted on all applicants. The application may be denied at the discretion of the Director if the applicant has one or more criminal convictions.

All applicants shall submit proof of successful completion of a safety training program specific to fireworks display operators within the five (5) years prior to the application submission.

Certification issued under these rules and regulations shall be dated and numbered and shall be valid for a period of three (3) years unless earlier revoked.

In the event that an application for a fireworks certification is incomplete, the applicant shall have 180 days in which to submit additional required documentation, after which the initial application shall be void. Processing fees in accordance with 14.1 shall be forfeited.

Renewal of the certification shall be granted to an operator without the need to retest, provided: (a) they are in good standing with the Division; (b) they have actively participated as a fireworks display operator in the safe performance of at least three (3) fireworks displays during the previous three-year certification period; and (c) they provide proof of completion of a safety training program for fireworks display operators completed within the previous three-year certification period

12.3 GENERAL KNOWLEDGE EXAMINATION

A General Knowledge Fireworks Examination designed to indicate that personnel who handle display fireworks in the State of Colorado have a minimum understanding of safety requirements and State regulations shall be administered to all persons who apply for certification as an operator of fireworks displays. This examination shall be developed or approved by the Director, and the length and content of the examination and the passing grade required will be at the discretion of the Director.

Any person may retake the examination when a passing grade is not achieved; however, a waiting period of thirty (30) days is required after each unsuccessful attempt.

A thirty dollar (\$30) nonrefundable fee will be assessed for each attempt to pass the General Knowledge Fireworks Examination.

CHAPTER XIII PYROTECHNIC OPERATOR CERTIFICATION

13.1 GENERAL PROVISIONS

No person shall be certified as a pyrotechnic operator unless they have passed a general knowledge fireworks examination administered by the Colorado Division of Fire Prevention & Control and have actively participated in a minimum of five (5) documented fireworks pyrotechnic shows in the five (5) years prior to application submission.

13.2 APPLICATION FOR CERTIFICATION

Application for certification as a pyrotechnic operator shall be filed with the Division on forms prescribed by the Director and shall contain such information as the Director may require.

Application for certification as a pyrotechnic operator shall be filed with the Division at least thirty (30) days before the date of any fireworks display to be conducted by the applicant.

Payment of the fee required by these rules and regulations must accompany the application for certification to the Division.

A criminal investigative background check shall be conducted on all applicants. The application may be denied at the discretion of the Director if the applicant has one or more criminal convictions.

All applicants shall submit proof of successful completion of a safety training program specific to fireworks pyrotechnic operators within the five (5) years prior to the application submission.

Certification issued under these rules and regulations shall be dated and numbered and shall be valid for a period of three (3) years unless earlier revoked.

In the event that an application for a fireworks certification is incomplete, the applicant shall have 180 days in which to submit additional required documentation, after which the initial application shall be void. Processing fees in accordance with 14.1 shall be forfeited.

Renewal of the certification shall be granted to an operator without the need to retest provided: (a) they are in good standing with the Division; (b) they have actively participated as a fireworks pyrotechnic operator in the safe performance of at least three (3) pyrotechnic shows during the previous three-year certification period; and (c) provide proof of completion of a safety training program for fireworks pyrotechnic operators completed within the previous three-year certification period.

13.3 GENERAL KNOWLEDGE EXAMINATION

A General Knowledge Fireworks Examination designed to indicate that personnel who handle pyrotechnic fireworks in the State of Colorado have a minimum understanding of safety requirements and State regulations shall be administered to all persons who apply for certification as an operator of pyrotechnic displays. This examination shall be developed or approved by the Director, and the length and content of the examination and the passing grade required will be at the discretion of the Director.

Any person may retake the examination when a passing grade is not achieved; however, a waiting period of thirty (30) days is required after each unsuccessful attempt.

CHAPTER XIV LICENSE, CERTIFICATION AND PERMIT FEES

14.1 GENERAL

The Department of Public Safety will charge the following fees for tests, licenses, certifications and permits issued under these rules and regulations:

GENERAL KNOWLEDGE FIREWORKS EXAMINATION.....	\$30.00
RETAILER OF FIREWORKS LICENSE.....	\$50.00
DISPLAY RETAILER OF FIREWORKS LICENSE.....	\$1,500.00
WHOLESALE OF FIREWORKS LICENSE.....	\$1,500.00
EXPORTER OF FIREWORKS LICENSE.....	\$1,500.00
FIREWORKS DISPLAY OPERATOR CERTIFICATION.....	\$50.00
PYROTECHNIC OPERATOR CERTIFICATION.....	\$50.00

The above fees are established for licenses, certification and permits issued by the Department of Public Safety. Consult the local authority to determine their fees for permits, if any, pursuant to C.R.S. § 24-33.5-2003.

Of the above fees, the sum of \$50.00 represents the cost to process applications for licensing or certification. In the event an application for licensing or certification is denied, for any reason, this amount is non-refundable. Processing fees will not be refunded in the event that local or statewide fireworks restrictions are enacted. In addition, the above listed fees are non-refundable in the event a license is suspended or revoked.

Fees may be waived or modified when appropriate at the discretion of the Director or their designee. Request for waiver or modification shall be in writing.

Editor's Notes

History

Entire rule eff. 06/14/2015.

Entire rule eff. 03/17/2017.

Rule 2.4 emer. rule eff. 03/15/2018.

Entire rule eff. 06/14/2018.

Rules 2.4, 4.9, 12.2, 13.2, Chapter XV eff. 03/30/2019.

Rules 1.3, 3.1(g), 4.1, 5.5, 12.1-12.3, 13.1-13.3 eff. 03/01/2024.